

to have enforcement intent. Minnesota argues that the district court erred when it transferred the Governor's enforcement intent to the Attorney General.

Under *Ex parte Young*, “such officer must have some connection” with enforcement “by virtue of *his* office.” 209 U.S. at 157 (emphasis added); *see also Whole Woman's Health*, 595 U.S. at 45 (holding that some “defendants f[e]ll within the scope of *Ex parte Young*'s historic exception to state sovereign immunity” based upon their connection to S.B. 8 while relief against others was “foreclose[d]”). *Ex parte Young* “rests on the premise” that “a federal court command[ing] a state official to do nothing more than refrain from violating federal law” does not violate a state's sovereign immunity. *Stewart*, 563 U.S. at 255. This has always required an analysis of the defendant's specific role in enforcement or else it would merely be an “attempt[] to make the state a party.” *See Ex parte Young*, U.S. at 157–61. So we must address whether the Attorney General's declaration is sufficient to disclaim any intent to enforce the Act.

We have held that the “proper standard” in assessing whether an officer is entitled to Eleventh Amendment immunity is whether his affidavit establishes his “‘unwillingness to exercise [his] ability to prosecute’” a claim against the plaintiffs. *Minn. RFL Republican Farmer Lab. Caucus v. Freeman*, 33 F.4th 985, 992 (8th Cir. 2022) (citation omitted). In a factual attack, like the review of the preliminary injunction in *Freeman*, we “look outside the pleadings to affidavits or other documents” to establish jurisdictional facts by a preponderance of the evidence. *Moss v. United States*, 895 F.3d 1091, 1097 (8th Cir. 2018). In *Whole Woman's Health*, the Supreme Court did just that. When a private citizen defendant “supplied sworn declarations” attesting “he possess[ed] no intention” to enforce the statute, a unanimous Supreme Court held that plaintiffs “[could not] establish ‘personal injury fairly traceable to [defendant's] allegedly unlawful conduct’” and remanded for the claims against this defendant to be dismissed for lack of standing. *Whole Woman's*